

24STCV31377 24STCV31377

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Below are tentative rulings on Defendant's 7 motions in limine, which Defendant timely filed ahead of the initial FSC on 6/26/2026. These motions were timely filed pursuant to the Court's Trial Preparation Order and CCP Section 1005.

Plaintiffs' seven motions in limine, some of which were filed after the FSC on 6/26/2026, are all untimely under the TPO and Section 1005. The Court therefore exercises its discretion and denies them as untimely.

Defendant's MIL No. 1. To exclude evidence of insurance is denied. The motion is not specific enough for the Court to understand what insurance evidence Defendant seeks to exclude. Instead of identifying the specific evidence that the motion seeks to exclude, this motion in limine amounts to little more than a restatement of the law and general legal principles. The moving party fails to demonstrate that there are no circumstances which would permit admission of this evidence. The Court declines to rule on this motion in limine in a vacuum. The moving party may at trial assert an objection to the introduction of specific evidence if and when this issue arises.

Defendant's MIL No. 2 to exclude medical testimony and/or opinions from lay witnesses is denied. The motion is not specific enough for the Court to understand what lay testimony regarding medical issues Defendant seeks to exclude. Instead of identifying the specific evidence that the motion seeks to exclude, this motion in limine amounts to little more than a restatement of the law and general legal principles. The moving party fails to demonstrate that there are no circumstances which would permit admission of this evidence. The Court declines to rule on this motion in limine in a vacuum. The moving party may at trial assert an objection to the introduction of specific evidence if and when this issue arises.

Defendant's MIL No. 3 to exclude Plaintiff's submission of hearsay documents including medical/legal reports, narratives, and billings is denied. The motion is not specific enough for the Court to understand what specific evidence Defendant seeks to exclude. Instead of identifying the specific evidence that the motion seeks to exclude, this motion in limine amounts to little more than a restatement of the law and general legal principles regarding hearsay. The moving party fails to demonstrate that there are no circumstances which would permit admission of this evidence. The Court declines to rule on this motion in limine in a vacuum. The moving party may at trial assert an objection to the introduction of specific evidence if and when this issue arises.

Defendant's MIL No. 4 to exclude evidence of healthcare medical bills other than the amount accepted by Plaintiffs' healthcare providers as payment in full of said bills is deferred. As set forth in the Pebley case, while a plaintiff who elects to treat with lien providers may be considered an uninsured plaintiff and provide evidence of bills for past medical services, such a plaintiff needs to proffer expert testimony on the reasonable value of the services rendered. *Pebley v. Santa Clara Organics, LLC* (2018) 22 Cal. App. 5th 1266, 1278. It is unclear to this Court whether Plaintiff has any such evidence to provide at trial, and so the Court expects Plaintiffs' counsel to provide an offer of proof of such evidence at the continued FSC.

Defendant's MIL No. 5 to exclude Plaintiffs from referencing, commenting upon or introducing into evidence documents not produced in discovery is denied. The motion fails to identify any potential evidence Plaintiffs plan on introducing that was not disclosed in discovery. Nor has the moving party attached any responses to interrogatories or other written discovery. Thus, the record is devoid of evidence of what witnesses were disclosed and what witnesses were not disclosed in discovery.

Defendant's MIL No. 6 to limit expert testimony of Plaintiffs' experts to those opinions and conclusions testified to at deposition and to exclude testimony based upon materials not reviewed or provided at deposition is premature.

The Court understood from the parties' counsel that Plaintiff has no designated retained experts in this case. Assuming that is correct, Plaintiff only has non-retained treating physicians testifying at trial. Defendant's Kennemur objection is premature at this juncture. The Court cannot anticipate at this time whether each and every possible opinion that Plaintiff may attempt to elicit from any non-retained expert will fall within the scope of their deposition testimony or potentially extend beyond opinions rendered during deposition. The Court will discuss the procedure for dealing with Kennemur objections with counsel at the continued FSC.

Defendant's MIL No. 7 to preclude testimony, evidence, and argument based upon the "reptile theory" is granted in part and denied in part. Parties must avoid arguments that ask jurors to put themselves in the shoes of Plaintiffs or to act on the basis of some ill-defined community interests. As to specific questions to witnesses or arguments made at trial, the Court denies the motion and directs counsel to raise specific objections at trial.